

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN TOGO

INTRODUCTION & FRAMEWORK

Community action shapes what happens to the coast, land, and water of Togo — and here the threat has an unusual character, because some of the most destructive harms are not single projects but slow disasters set in motion by infrastructure elsewhere. Togo is a narrow West African coastal state, ruled by one family since 1967, where the sea is devouring the shore at five to ten metres a year: the former capital, **Aného**, dozens of fishing villages, and the coastal road are projected to vanish by 2038 if nothing changes; the coast road has already been moved inland three separate times; and six fishing villages have simply disappeared beneath the waves for good. This erosion is driven not by nature alone but by human works — the great dam far upstream in Ghana that traps the sand the coast needs, and the ports of Lomé and Cotonou whose long structures block the drift of sediment along the shore that the coast depends on to renew itself. Alongside this, a state-run phosphate plant on the coast at **Kpémé** discharges its industrial waste directly into the sea, and poverty pushes fishermen to mine the very sand that protects them. Togo is a hard place to oppose the powerful, protest has been repressed, and no community has won a landmark victory. But the levers, though constrained, are real.

In a semi-authoritarian state whose harms are often transboundary and infrastructural, a community has more than one arena, and the tools, though constrained, are real. The distinctive lever is the **regional ECOWAS Court of Justice**, which citizens can petition directly and which has ruled against the Togolese government — a regional legal arena the government cannot control. At home, a **constrained but real domestic space of civil society, press, and courts** offers genuine, if limited, room to organise, document, and litigate. Because the erosion's cause lies partly in works in another country and in regional ports, the **transboundary and regional frameworks** reach across borders to the drivers of the harm. The **international and regional coastal programmes** — the World Bank, UN, and regional coastal and climate funds — pay for the protection and bring standards with them. And the phosphate plant's pollution and any coastal project must reckon with **environmental assessment and the pollution and marine law**. These tools are general — the regional court, the domestic space, the transboundary frameworks, the coastal funders, and the assessment reach the country's various harms, from the eroding coast to the polluting plant. But these tools have real limits, and this guide states them plainly. Togo is ruled by a long-entrenched family, and protest and opposition have been met with repression, so open confrontation carries risk and the work must be careful. The coastal erosion is a slow disaster, driven partly by works in another country and by decades of development, and cannot simply be switched off. The phosphate that pollutes is a mainstay of the economy, so the state is slow to curb it. And no community has won a landmark victory. So favour the funded, legal, regional, and careful arenas over confrontation — they both work and carry less risk — and aim for what these tools can genuinely deliver: the coastal protection funded and the standards applied, the transboundary cause pressed, the phosphate pollution assessed and challenged, a case carried to the ECOWAS Court — protecting those who organise and speak, especially inside the country.

The Whole Strategy in One Idea

You win here, in a constrained but not closed state, by working the several arenas a transboundary, infrastructural harm opens. Carry a case to the regional ECOWAS Court, which the government cannot control and which has ruled against it; use the constrained but real domestic space of civil society, press,

and courts to organise, document, and litigate; press the transboundary and regional frameworks that reach the cross-border cause; draw down the international coastal programmes that fund protection and bring standards; and hold the phosphate pollution and coastal projects to their environmental assessment — all carefully, favouring the funded and legal arenas over risky confrontation, and protecting those inside.

Be Honest About Which Fight You're In

Togo is a semi-authoritarian setting with a slow, cross-border disaster, and honesty about that is the first discipline. The government is long-entrenched and has repressed protest, so open confrontation carries risk and the work must be careful; the coastal erosion is driven partly by works in another country and cannot simply be switched off; the phosphate that pollutes is an economic mainstay; and no community has won a landmark victory. So favour the funded, legal, and regional arenas over confrontation, and aim at the winnable — the protection funded, the transboundary cause pressed, the pollution challenged, a case carried to the ECOWAS Court — while protecting those who organise and speak.

HOW THE SYSTEM WORKS

Who Actually Decides

A Togolese harm runs through several arenas at once. The **government and its environment and coastal bodies** decide the assessments, the phosphate plant, and the coastal works. The **domestic courts and the regional ECOWAS Court** offer legal arenas, the latter beyond the government's control. The **transboundary and regional bodies** reach the cross-border causes — the upstream dam, the regional ports. And the **international and regional coastal programmes and their funders** pay for and shape the protection. Map which arena — regional court, domestic space, transboundary framework, or coastal fund — best reaches a harm before spending a week on it.

How the Harm Moves — and Where You Jump In

The erosion moves slowly, driven from upstream and along the coast; the phosphate pollution flows from the plant; the coastal works and sand mining bite locally. You enter through the regional ECOWAS Court and the domestic space for a legal challenge; through the transboundary and regional frameworks for the cross-border cause; through the coastal programmes for the funded protection; and through the environmental assessment for the pollution and the projects. Enter through the several arenas, carefully, favouring the legal and funded over the confrontational.

Follow the Money and the Permissions

Follow the sand: the upstream dam and the regional ports that starve the coast of the sediment it needs. Follow the pollution: the phosphate plant's discharge into the sea. Follow the funding: the international and regional coastal programmes that pay for protection and bring standards. Follow the law: the domestic courts and the regional ECOWAS Court a citizen can petition. The leverage lies in the regional court, the transboundary frameworks, the coastal funders, and the assessment.

Who's Supposed to Be Watching

Togo has real, if constrained, watchers: the environment and coastal bodies, the domestic civil society, press, and courts, and — beyond the government's control — the regional ECOWAS Court, the transboundary and regional bodies, and the international coastal programmes with their standards. These genuinely function within their limits, and a case engages them, favouring the arenas the government cannot

easily suppress.

QUICK REFERENCE: SUCCESS RATES

Effort in Togo is genuinely possible, in a constrained but not closed state, through the several arenas a transboundary harm opens. The single most decisive move is **carrying the case to the regional ECOWAS Court and drawing down the international coastal programmes**, because the regional court is beyond the government's control and has ruled against it, and because the coastal funders both pay for protection and bring standards that constrain the state. The ECOWAS Court and the coastal programmes are the distinctive levers; the domestic space and transboundary frameworks the further arenas; the assessment the gate for the pollution. What the tools deliver is real — protection funded, the transboundary cause pressed, the pollution challenged, a case won at the regional court — though the erosion is slow and the space constrained.

STEP 1: TARGET IDENTIFICATION

Ask five questions. **What is the harm?** — the eroding coast, the phosphate pollution, a coastal work, the sand mining. **What causes it?** — the upstream dam, the regional ports, the plant, the development. **Which arena reaches it?** — the regional court, the domestic space, the transboundary framework, the coastal fund. **What funds the fix?** — the international and regional coastal programmes. **How are those who speak protected?** — the careful discipline in a repressive state. Pick the fight where the ECOWAS Court, the coastal funders, or the transboundary framework gives the clearest, safest handle.

STEP 2: DOCUMENTATION

Build the case in layers. **Layer one: the harm and its cause** — the erosion and its upstream and coastal drivers, the phosphate discharge, the coastal works, documented with the science. **Layer two: the arena and the standard** — the regional court's jurisdiction, the transboundary frameworks, the coastal programmes' standards, the environmental-assessment and pollution law the harm breaches or strains. **Layer three: the coalition and the safety** — the civil society, the regional and international allies, and the discipline of protecting those inside. A case grounded in the cross-border cause and carried to the regional court and the funders is one that reaches beyond a government that would suppress it at home.

WHAT TO GATHER, AND WHERE TO FIND IT

Gather the **harm record**: the erosion rate, the lost villages, the phosphate discharge, the science of the sediment starvation. Gather the **cause record**: the upstream dam, the regional ports, the plant. Gather the **arena record**: the ECOWAS Court's jurisdiction and rulings, the transboundary frameworks, the domestic courts. Gather the **funding record**: the international and regional coastal programmes and their standards. Gather the **safety discipline**: confirm the work protects those who organise and speak. Much of the coastal science and the regional legal record is documented and available.

STEP 3: BUILDING LOCAL AND REGIONAL SUPPORT

The coalition here is domestic where safe, and strongly regional and international. Build with the **affected coastal communities**, the fishers and villagers losing their shore; the **domestic civil society, press, and lawyers**, within the constrained space; the **regional and ECOWAS-Court advocates**; and the

international and regional coastal programmes and their funders. Frame the cause around a vanishing coast and a poisoned sea, and the funded protection and regional justice that can answer them; protect those inside; and favour the regional and funded arenas over risky confrontation.

STEP 4: THE REGIONAL COURT, THE COASTAL FUNDS & THE TRANSBOUNDARY CAUSE — WORKING THE ARENAS

Set expectations honestly: the levers are real but constrained, and the erosion slow, so the prize is protection, pressure, and regional justice, not a quick reversal.

The ECOWAS Court and the Domestic Space

The distinctive lever is the **regional ECOWAS Court of Justice**, which citizens petition directly and which has ruled against the government, joined to the **constrained but real domestic space of civil society, press, and courts**. Carry a case to the regional court and use the domestic space to organise, document, and litigate.

The Transboundary Cause and the Coastal Funds

Because the erosion's cause lies in works in another country and in regional ports, the **transboundary and regional frameworks** reach it, and the **international and regional coastal programmes** fund the protection and bring standards. Press the transboundary cause and draw down the coastal funds.

The Assessment and the Pollution Law

The phosphate plant's pollution and any coastal project must reckon with **environmental assessment and the pollution and marine law**. Pursued together — the regional court and domestic space, the transboundary frameworks and coastal funds, and the assessment and pollution law — these levers work the several arenas, carefully.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Tailor the case to each audience. **For the ECOWAS Court:** here is a harm and a right the regional court can address, beyond the government's control. **For the coastal programmes:** here is a coast to protect, to your standards. **For the transboundary frameworks:** here is a cross-border cause — the upstream dam, the regional ports. **For the environment bodies:** here is pollution and a project needing proper assessment. **For the domestic civil society and press:** here is a vanishing coast to document and defend. **The golden rule:** carry the case to the regional court and the funders, press the transboundary cause, hold the pollution to its assessment, favour the funded and legal arenas over confrontation, and protect those inside.

STEP 5: MEDIA STRATEGY

Media must be handled with care in a repressive state, and often through regional and international channels. Frame the story around **the vanishing coast and the poisoned sea:** villages lost to erosion driven from upstream, a phosphate plant discharging into the sea, and the funded protection and regional justice that can answer them — never in a way that exposes those inside. Carry it through the regional and international press, the coastal-programme networks, and the ECOWAS-Court advocates. A few cautions: keep it accurate and grounded in the science and the law; favour the regional and international framing; protect those who speak; and let the erosion science, the regional court, and the coastal funders carry the

weight.

EMAILS & LETTERS

Keep every message careful, grounded in the science and the law, and protective of those inside.

8A — To the ECOWAS Court (through counsel): bring the case the regional court can address, beyond the government's control.

8B — To an international or regional coastal programme: request the funded protection and its standards for the eroding coast.

8C — On the transboundary cause: press the upstream dam and the regional ports through the transboundary frameworks.

8D — To the environment body: require the assessment and the curbing of the phosphate plant's discharge.

8E — To the domestic courts (through counsel): litigate the pollution or the coastal harm within the domestic space.

8F — To a civil-society or press ally: coordinate the documentation, carefully and within the constrained space.

8G — On the coastal communities: organise the affected villages' case for protection, protecting those who speak.

8H — To the regional and international public: tell the story of the vanishing coast and the poisoned sea, exposing no one inside.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

The first 48 hours: document the erosion or the pollution and its cause; identify the regional court, the coastal funders, or the transboundary framework that reaches it; write the one-page case. **The fastest-moving levers:** the ECOWAS Court, the international coastal programmes, and the transboundary frameworks. **Emergency action:** for a coastal harm, the coastal funders and the transboundary cause; for a rights or legal question, the ECOWAS Court. Throughout, favour the funded and legal arenas over confrontation, and protect those inside.

WHEN THE SYSTEM IS TILTED

The field here is tilted by a long-entrenched, semi-authoritarian government and a cross-border harm the state did not wholly cause and cannot simply switch off. Recognise it, and lean on the arenas the tilt cannot easily suppress — the regional ECOWAS Court beyond the government's control, the international coastal programmes with their standards, the transboundary frameworks, and the constrained but real domestic space. And accept the honest limits — the space is repressive, the erosion slow, the phosphate an economic mainstay — while still working the several arenas carefully, and protecting those who speak.

WHEN IT'S ACTUAL REPRESSION — AND WHO BENEFITS

Here the challenge is a semi-authoritarian state that has repressed protest, and a phosphate economy the state is slow to curb. Respond through the **careful, funded, legal, and regional arenas**: the ECOWAS Court, the coastal programmes, the transboundary frameworks, the constrained domestic space. Favour these over open confrontation, which carries risk. **On safety and care**: this note governs everything here. Togo is semi-authoritarian, and protest and opposition have been repressed — so pursue this work with real care for safety. Favour the funded, legal, regional, and adaptive arenas over confrontation, because they both work and carry less risk; protect those who organise and speak, especially inside the country; and never expose anyone. Care is the governing rule.

INTEGRATION & TIMELINE

The steps run in parallel, across the arenas. The documented harm and cause feed the regional-court case, the transboundary claim, and the coastal-programme request at once; the domestic civil society and the regional and international allies organise together; the media carries the vanishing coast throughout. A rough timeline: **weeks one to four**, document the harm and its cause, and identify the arenas; **months two onward**, carry the case to the ECOWAS Court, draw down the coastal funds, press the transboundary cause, and challenge the pollution; **through the long effort**, sustain the protection and the pressure. The core discipline: multi-arena, funded and legal, regionally carried, and protective of those inside.

FINAL ASSESSMENT

Togo is a hard, semi-authoritarian ground with a slow, cross-border disaster, and this guide does not pretend otherwise. It does not claim protest is safe, or the erosion quickly reversible, or that a landmark victory exists — none of that is true, and the space is repressive. What it claims is real: that the regional ECOWAS Court, which citizens petition directly and which has ruled against the government, is an arena beyond the state's control; that a constrained but real domestic space of civil society, press, and courts offers genuine room to organise and litigate; that the transboundary and regional frameworks reach the cross-border cause; that the international coastal programmes fund protection and bring standards; and that the phosphate pollution and coastal projects must reckon with the environmental assessment. These tools are general, reaching the country's various harms, from the eroding coast to the polluting plant. The levers are constrained but real, and the prize is protection funded, the transboundary cause pressed, the pollution challenged, and a case won at the regional court — not a quick reversal. For a narrow coastal state losing its shore to works upstream and along the coast, that careful, multi-arena work — favouring the funded and legal over confrontation, and protecting those who speak — is not a lesser ambition. It is the realistic and effective one.